

		construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect for allegations of fraud. (<i>Id.</i>) However, less specificity is required of fraud claims when a defendant must necessarily have more information or knowledge concerning the facts of the controversy than a plaintiff. (<i>Alfaro v. Community Housing System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384.) Thus, the Demurrer to the fifth cause of action for fraud is sustained with leave to amend. Defendant is ordered to serve notice.
5.	2025-1517586 Je Beaute, Inc. vs. Guo	The Court erroneously referred to this matter as having been continued from 5/13 for “lack of an interpreter.” But subsequent to posting, the Court was presented with supplemental briefing (ROAs 177 and 179) which refreshed the Court’s recollection as to the reason it continued the original motion to expunge lis pendens. Based on the supplemental briefing, the Court is satisfied both that the matter concerns real property, and as to the validity of the claim. Accordingly, the motion to expunge lis pendens is DENIED.
6.	2022-1262809 Haddad vs. Ismail	The Court grants Defendants Wissam Ismail and Omer Ismail’s Motion to vacate the 7/20/23 default and the 10/26/23 Judgment entered against them on Plaintiff Wasfi Haddad’s Complaint for breach of contract. <u>Evidentiary Objections</u> The Court overrules Defendants’ objection nos. 1-5. <u>Legal Standard</u> Without valid service of summons, the court never acquires jurisdiction over defendant. Hence, the statutory ground for the motion to quash is that the court lacks jurisdiction over the defendant. (CCP § 418.10(a)(1); <i>see Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371—”[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void” (internal quotes and citation omitted).) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 CA4th 403, 413; <i>see Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.)

There is no time limit to bring a motion for relief from a default judgment in the original action on the ground a judgment, though valid on its face, is void for lack of proper service—cases to the contrary have been disapproved. (CCP § 473(d); *California Capital Insurance Company v. Hoehn* (2024) 17 Cal. 5th 207, 225, disapproving *Trackman v. Kenney* (2010) 187 Cal. App. 4th 175.)

Some courts require defendants seeking to vacate a default judgment to act with reasonable diligence after learning of that judgment. (See, e.g., *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 37 [“diligence is measured from when a party discovers the default or default judgment”].) Other courts have cast doubt on the imposition of such a requirement. (See *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1229, [“‘[w]hat is initially void is ever void and life may not be breathed into it by lapse of time’”; *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 225, filing the motion within 3 months of learning of the judgment is per-se reasonable.)

Merits

It is Plaintiff’s burden to show proper service. Plaintiff relies on the Proof of Service filed on 7/18/23 at ROA 19 and 21. They each contain declarations of the process server Ali M. Said. He testifies that he personally served both Defendants with the Summons and Complaint on May 24, 2023, at 1:17 p.m. and May 27, 2023, at 9:22 a.m. at 5 Estates Drive, Villa Park, California 92861. (See Said Decls. attached to the proofs of service.)

As to Defendant Wissam Ismail, documentary evidence establishes that he resided and worked in Dubai, United Arab Emirates, throughout May 2023. His Emirates NBD bank statement reflects numerous in-person transactions in Dubai during that month, including on May 24, 2023—the very date the Proof of Service claims he was personally served in Villa Park. Those transactions include purchases at Starbucks, Majid Al Futtaim Hypermarket, and Royal Dining Catering Services—all of which required his physical presence in Dubai. (Wissam Ismail Decl., ¶¶ 6–8, 10 & Ex. B.) Mr. Ismail also held a residential lease at Central Park Towers in the Dubai International Financial Centre, commencing January 25, 2023, and received regular salary deposits from his Dubai employer, KOI Technologies FZCO. (Wissam Ismail Decl., ¶¶ 4 5, 9 & Exs. A–B.)

As to Defendant Omer Ismail, official Jordanian government border records establish that Omer Ismail has been continuously present in Jordan since June 11, 2018. A Proof of Entry/Exit Form issued by the Hashemite Kingdom of Jordan, Public Security Directorate, Residency and Borders Department, dated December 7, 2025,

confirms that: (1) Mr. Omer Ismail's last recorded entry into Jordan was on June 11, 2018, arriving from Britain via Queen Alia International Airport; (2) no departures from Jordan have been recorded since that date; and (3) Mr. Omer Ismail's current status is "Inside the country." (Omer Ismail Decl., ¶¶ 6–9; Alazzazi Decl., ¶¶ 2–4 & Ex. B [certified translation].)

Souad Kassis, the estranged spouse of Wissam Ismail, resided at 5 Estates Drive in May 2023. She confirms that no process server came to the property on May 27, 2023. (Kassis Decl., ¶¶ 2, 4.) No one showed up at the door that day to serve papers. The encounter described in the Proof of Service did not happen. (Id., ¶ 4.) Ms. Kassis further confirms that Omer Ismail was not present at the property on May 27, 2023, and to her knowledge has never been present at that address. (Id., ¶ 5.)

The Court therefore finds that Plaintiff has not met his burden to show personal service was actually accomplished.

Plaintiff argues in opposition that Defendants did not act with diligence because they knew Plaintiff sued them. But Plaintiff's evidence does not show actual knowledge of the lawsuit. But even if it did show actual knowledge in April of 2023, this is not a substitute for proper service. When service is improper then the issue of action notice of the lawsuit is irrelevant. Actual notice of the action alone is not a substitute for proper service and is not sufficient to confer jurisdiction. "[N]o California appellate court has gone so far as to uphold a service of process solely on the ground the defendant received actual notice when there has been a complete failure to comply with the statutory requirements for service." (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392, citing *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 414.)

Further, Defendants were diligent in filing this Motion after learning of the default judgment. On September 12, 2025, court officers arrived at Omer Ismail's property in Jordan to assess its value for auction. Both Defendants learned of the California judgment that day. (Wissam Ismail Decl., ¶ 12; Omer Ismail Decl., ¶ 10.) Omer Ismail immediately retained Jordanian counsel, Ali Al-Hasani, Esq., who filed an appeal with the Amman Court of Appeal on September 23, 2025. Enforcement of the judgment is now stayed. (Omer Ismail Decl., ¶ 11.) Defendants retained California counsel on November 18, 2025, and now bring this motion at the earliest opportunity. (*Id.*)

Thus, the Motion is granted.

		But the issue remains whether Defendants have now appeared and must respond to the Complaint. Parties are ordered to come prepared to discuss this issue with the Court.
7.	2024-1394067 Sanchez vs. Jaguar Land Rover North America, LLC	The motion by Plaintiff Oscar Sanchez (“Plaintiff”) for an order awarding attorneys’ fees and costs pursuant to Civil Code section 1794, subdivision (d) is granted. On February 18, 2026, the hearing on this motion was continued to allow Plaintiff to file Plaintiff’s supporting declaration because it appeared Plaintiff inadvertently filed Plaintiff’s memorandum of costs twice instead of the supporting declaration. Plaintiff filed the supporting declaration that was served on July 31, 2025, and provided notice of the continued hearing to Defendants Jaguar Land Rover North America, LLC and Anaheim Hills Jaguar Land Rover, Inc., dba Jaguar Land Rover Anaheim Hills (collectively, “Defendants”). Defendants’ unopposed request for the Court to take judicial notice of the register of actions and the notice of settlement are denied because Defendants did not make the request “in a separate document.” (Cal. Rules of Ct., Rule 3.1113(l).) In addition, it is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may “simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9:53.1a.) The Court exercises its discretion to consider Plaintiff’s reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Civil Code section 1794, subdivision (d) provides as follows: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” There is no dispute that Plaintiff is the prevailing party and entitled to recover Plaintiff’s costs, including fees, pursuant to section 1794, subdivision (d). The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th